Riyazuddin vs State Nct Of Delhi on 1 February, 2023

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3195/2022
RIYAZUDDIN ..... Pe
Through: Dr. Ashutosh, and Ms. Fathim
Advocate.
versus
STATE NCT OF DELHI ..... Re
Through: Mr. Ritesh Kumar Bahri, APP
State with Insp. Ajit Singh,
Lodhi Colony.

CORAM:
HON'BLE MR. JUSTICE ANISH DAYAL
ORDER

% 01.02.2023

1. As per the previous order dated 23rd January, 2023, learned counsel for the petitioner addressed arguments on the issue of right of the petitioner for default bail considering that the supplementary charge sheet which was filed beyond the period of 60 days added offences punishable under Sections 419/420/ IPC.

2. Learned APP for the State has addressed on the issue of default bail and placed the following decisions in support of his arguments:

> Serious Fraud Investigation Office v. Rahul Modi & Ors, Crl. Appeal No. 185-186/2022 decision dated 07th February, 2022; Suraj v. State of Delhi NCT, Bail Application No. 120/2022 AIR OnLine (2022) DEL 110; Saurabh Bali v. State, Bail. Application No. 1168/2021, AIR OnLine (2021) DEL 1000.

3. Learned APP for the State contends on the basis of these decisions that as long as the complete charge sheet is filed within the period of 60 days as regards these offences the indefeasible right of an accused for seeking default bail stand extinguished irrespective of when cognizance is taken.

4. However, learned counsel for the petitioner has stated that his plea stands on the different footing where the supplementary charge sheet is not in continuation of residual reports on evidence to be collected and filed but an add-on investigation which results in additional offences for which accused has been implicated.

5. Parties shall address arguments on this aspect specifically on the next date.

6. In view of the fact that the interim bail is expiring today but had been extended earlier on account of surgery of his wife, and since the medical procedures are apparently underway, it would be

appropriate to extend the interim bail till the next date of hearing subject to the same terms and conditions.

7. List on 09th February, 2023.

8. Order be uploaded on the website of this Court.

ANISH DAYAL, J FEBRUARY 1, 2023/RK